

actionable.

Both sides argue about what happened in the DVRO hearing in family court and what findings that court made. On demurrer, the Court is not going to engage in a detailed analysis of what exactly was found in the family court proceeding and whether Plaintiff's or Defendant's characterization of that proceeding is more accurate. Rather the question here is whether Plaintiff has alleged that the statements are false.

As to the financial allegations, Plaintiff alleges that the account information was false, but does not alleged that the remainder of the statement was false. Thus, Plaintiff fails to allege that the claim that he hit Defendant is false. A false reference to a specific kind of bank account, such as Bank of America checking x2406, is not defamatory in this context. Thus, Plaintiff must show that some other portion of the statement regarding the financial abuse is false in order to state a claim for libel.

As to the child abuse allegations, Defendant argues that the allegations of falsity are based upon the court's findings and do not include allegations that the conduct did not occur. Here, Plaintiff has failed to allege that he did not hit his child, only that the family court found it was not abuse. Such an allegation is insufficient to allege falsity of Defendant's statement.

Therefore, the demurrer is sustained with leave to amend for Plaintiff to allege that at least one of the defamatory statements was false.

Damages

Defendant argues that Plaintiff has not alleged facts showing that the defamatory statements caused him injury.

Previously, Plaintiff had not alleged the statements with sufficient particularity, so it was unclear if they were libelous on their face. In the prior demurrer the Court analyzed whether Plaintiff had alleged special damages because it was not clear if there would be assumed damages. The Court then sustained with leave to amend for Plaintiff to either allege his special damages with sufficient particularity or allege a statement that is libelous on its face.

In amending his complaint, Plaintiff provided details on the alleged statements, and the Court finds that allegations that Plaintiff hit Defendant and/or his child are libelous on their face. Since Plaintiff has now alleged statements that are libelous on their face, damages are assumed and thus, it is sufficient for Plaintiff to allege that he was damaged. The demurrer on this ground fails.

Defendant also demurs arguing that facts showing republication are insufficient. Here, Defendant is alleged to be the original defamer and is not being sued for republication of another's statements, but for making her own statements. The demurrer on this ground fails.

18. 9:00 AM CASE NUMBER: C25-00925
CASE NAME: KURTIS MILLHOLLIN VS. MICHAEL ALLIO
HEARING ON SUMMARY MOTION FILED BY KURTIS MILLHOLLIN
FILED BY: MILLHOLLIN, KURTIS
TENTATIVE RULING:

Plaintiff Kurtis Millhollin's unopposed Motion for Summary Adjudication of his Second Cause of Action for Breach of Contract against Defendant Michael Allio is granted.

Plaintiff Kurtis Millhollin alleges that he and Defendant Michael Allio entered into a \$150,000.00 loan agreement, and Defendant subsequently failed to pay the remaining \$115,000.00 balance of the loan. Plaintiff moves for summary adjudication of his second cause of action for breach of contract, arguing that each element of the claim has been established by operation of law through Defendant's deemed admissions. (See UMF Nos. 1–28.) Specifically, Plaintiff contends that on or about January 9, 2026, the Court granted Plaintiff's motion to deem requests for admission admitted and that Defendant has judicially admitted that each element of Plaintiff's cause of action for breach of contract has been proved as required by Code of Civil Procedure section 437c, subdivision (p)(1), and there is no defense to the cause of action.

A plaintiff moving for summary judgment "bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Where, as here, the moving party is the plaintiff, he must prove "each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).) Summary judgment is properly granted only if the moving party's evidence establishes that there is no issue of material fact to be tried. (*Lipson v. Superior Court* (1982) 31 Cal.3d 362, 374.)

To prevail on a cause of action for breach of contract, a plaintiff must prove the existence of a contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) Under Code of Civil Procedure section 2033.410, any matter admitted in response to a request for admission is conclusively established against the party making the admission. A deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein. (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) Absent leave of court to amend or withdraw the admission, no contradictory evidence may be introduced. (*Murillo v. Superior Court* (2006) 143 Cal.App.4th 730, 736.)

Here, the deemed admissions conclusively establish each requisite element of the breach of contract claim against Defendant. The admissions establish that Defendant executed a written Promissory Note dated March 7, 2024, promising to repay the principal sum of \$150,000.00 on or before April 8, 2024 (RFA Nos. 15, 16, 27); that Plaintiff fully performed under the agreement by delivering the \$150,000.00 loan proceeds at Defendant's direction (RFA No. 17); that Defendant breached the agreement by failing to repay the loan on or before the April 8, 2024 maturity date (RFA Nos. 16, 24); and that only \$35,000.00 of the principal was ever repaid, leaving an outstanding balance of \$115,000.00. (RFA Nos. 23, 24.)

Plaintiff has satisfied his initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), to prove each element of the cause of action, shifting the burden to Defendant to demonstrate the existence of a triable issue of material fact. Defendant has filed no opposition and has not sought to withdraw or amend the deemed admissions. Therefore, Defendant has not met his burden of production to show a triable issue of fact.

Plaintiff is also entitled to statutory prejudgment interest on the \$115,000 principal balance. Because the promissory note does not stipulate to a legal rate of interest, the obligation bears interest at the rate of ten percent (10%) per annum after the breach. (Civ. Code, § 3289, subd. (b); Millhollin Decl., ¶ 3, Ex. 1.) The Court calculates the per diem interest rate at \$31.51 (\$11,500 annual interest divided by 365 days). For the 878 days from the April 8, 2024 breach through the September 2, 2026 hearing date, prejudgment interest totals \$27,665.78, resulting in contract damages of \$142,665.78.

Additionally, under the Court's January 9, 2026 order, Defendant was ordered to pay discovery sanctions in the amount of \$1,620.00, which remain unpaid. (Millhollin Decl., ¶ 4.) Because an order imposing monetary sanctions is enforceable in the same manner as a money judgment under the Enforcement of Judgments Law (Code Civ. Proc., § 680.010 et seq.; *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615), the Court will add the \$1,620 sanctions award to the \$142,665.78 contract damages subtotal, **resulting in a total of \$144,286.78.**

Plaintiff shall prepare and submit a proposed order.

19. 9:00 AM CASE NUMBER: C25-03012
CASE NAME: I'YOSHI BARNES VS. DOES 1 TO 30
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: GUARDIAN/KW HILLTOP LLC
TENTATIVE RULING:

Defendant Guardian/KW Hilltop LLC's Motion to Strike punitive damages allegations is **granted with leave to amend**. Defendant shall prepare the order and give notice. Plaintiff has 15 days from service of notice of entry to amend the complaint. If Plaintiff cannot do so within this timeframe, Plaintiff may later move for leave to amend if facts supporting punitive damages are uncovered during discovery.

Background

Plaintiff I'Yoshi Barnes brings this action against Defendant Guardian/KW Hilltop LLC and Does, alleging claims arising from a residential tenancy at 3400 Richmond Parkway, Apartment 4109, in Richmond, California (the Property). (Compl. ¶¶ 1-2, 9.) Plaintiff alleges that Defendant placed her in a different unit than the one she applied for without allowing a walkthrough. (*Id.* ¶ 12.) After taking possession, Plaintiff observed that the unit was dirty and smelly, the carpet was stained, the counters had cuts and paint on them, and a bedroom wall was softened and bloated. (*Id.* ¶ 13.) Plaintiff allegedly notified Defendant of these conditions and requested repairs, but Defendant did not make them. (*Id.* ¶ 14.)

Plaintiff alleges that the apartment flooded due to heavy rain on November 11, 2024, causing water